

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court *will not* entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 24, 2026

#	Case Name	Tentative
1.	30-2025-01516539-CU-OE-NJC Clasby vs. City of Seal Beach	Before the Court is a Motion to Compel Production brought by plaintiff Julia Clasby (“Plaintiff”) against defendant City of Seal Beach (“Defendant”). ROA 68. Plaintiff seeks an order pursuant to California Evidence Code Sections 1043 and 1045 (a <i>Pitchess</i> motion) compelling Defendant to produce and disclose materials relevant to the subject matter of this litigation, including peace officer personnel records, following an <i>in camera</i> review. ROA 68. The underlying action arises out of Plaintiff’s employment as a police officer with Defendant City of Seal Beach. Plaintiff alleges employees of Defendant City of Seal Beach’s Police Department harassed and discriminated against Plaintiff and then retaliated against Plaintiff because she internally reported this harassment and discrimination. Plaintiff contends that the employees’ actions were

		discriminatory on the basis of Plaintiff's sex and or gender. Plaintiff also contends that Defendant failed to stop discriminatory, harassing, and retaliatory conduct by its employees of which it was aware. Defendant requests that materials from still open internal affairs investigations be lodged for in camera review, and any disclosure ordered, once the investigations have concluded. ROA 86. Additionally, Defendant requests that the Court narrow the temporal scope of Request No. 7 from ten (10) years to five (5) years and limit the scope of Request No. 6 to materials from the 2022 promotional process and the comparator's performance evaluations and training records from the preceding three (3) to five (5) years. <i>Id.</i>, p.4. "Pitchess" Motion Standard Peace officer personnel records and information obtained from those records are confidential and may not be disclosed in any criminal or civil proceeding, except pursuant to a two step procedure referred to as a <i>Pitchess</i> motion. Cal. Pen. Code, § 832.7(a); Cal. Evid. Code § 1043; <i>Cnty. of Los Angeles v. Super. Ct.</i>, 219 Cal. App. 3d 1605, 1610 (1990). Personnel records are defined as: any file maintained under that individual's name by his or her employing agency and containing records relating to any of the following, [among others]: (1) [p]ersonal data, including marital status, family members, educational and employment history, home addresses, or similar information; (2) [m]edical history; (3) [e]lection of employee benefits; or (4) [e]mployee advancement, appraisal, or discipline. Cal. Pen. Code §§ 832.8(a)(1), (2), (3), (4). Good cause for discovery exists when the defendant shows both "'materiality' to the subject matter of the pending litigation and a 'reasonable belief' that the agency has the type of information sought." <i>City of Santa Cruz v.</i>
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	<i>Municipal Ct.</i>, 49 Cal. 3d 74, 84 (1989); <i>Warrick v. Super. Ct.</i>, 35 Cal. 4th 1011, 1019 (2005); <i>see</i> Cal. Evid. Code § 1043(b)(3). To show the requested information is material, the declaration must contain a “‘specific factual scenario’ which provide[s] sufficient information to allow the trial court to assess whether the records [are] material[.]” <i>City of San Jose v. Super. Ct.</i>, 67 Cal. App. 4th 1135, 1146 (1998). In other words, the moving party must articulate how the discovery being sought will support his claim or proposed defense, or how it will impeach the officer’s version of events. <i>See Garcia v. Superior Court</i>, 42 Cal. 4th 63, 71 (2007). “This good cause showing is a ‘relatively low threshold for discovery.’ (Citation omitted). Assertions in the affidavits ‘may be on information and belief and need not be based on personal knowledge (citation omitted), but the information sought must be requested with sufficient specificity to preclude the possibility of a [party] simply casting about for any helpful information.’” <i>Garcia, supra</i>, 42 Cal. 4th at 70. If the moving party has established good cause, the trial court proceeds to the second step—an in chambers examination of the records to determine whether they have any relevance to the issues presented in the current proceedings. Cal. Evid. Code § 1045(b). In the in camera hearing, the court determines whether the relevant information or documents are precluded from disclosure by California Evidence Code Section 1045, subdivisions (b) and (c). Cal. Evid. Code § 1045(b), (c). Further, after an in camera review is undertaken, the trial court will only disclose the names, addresses, and telephone numbers of individuals who have witnessed or have previously filed complaints about similar misconduct by the officer, at least until a later showing of necessity is made. <i>See People v. Matos</i> 92 Cal. App. 3d 862, 868 (1979); <i>see also Haggerty v. Superior Ct.</i> 117 Cal. App. 4th 1079, 1089-109 (2004) (affirming that with respect to third party complaints, only the names, addresses and telephone numbers should be disclosed to protect a police officer’s strong privacy interest in these records, but holding that internal affairs reports, if relevant, should be disclosed after the investigative officer’s analysis and conclusion portions
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	have been redacted.) However, this limitation only applies to third party complaints. If disclosure is ordered, the Court is required to issue an order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.” Cal. Evid. Code § 1045(e). Here, Plaintiff identifies the types of records sought and contends that the documents described in its Motion are in the possession, custody, or control of Defendant and/or their counsel. ROAs 64, 68. The Court finds that the documents requested in the motion are relevant to Plaintiff’s claims. Plaintiff’s counsel’s supporting declaration satisfies the supporting affidavit requirement for a <i>Pitchess</i> motion, as it sets forth the substance of Plaintiff’s claims, and explains the relevance of the requested records. ROA 64. Defendant does not dispute that Plaintiff established good cause for an <i>in camera</i> review of the requested materials. ROA 86. Accordingly, the Court finds Plaintiff has established good cause for an <i>in camera</i> review of documents and related materials identified in their notice of Motion. The Court notes Defendant’s request that materials relating to pending internal affairs investigations be lodged for <i>in camera</i> review and that any disclosure be deferred until the investigations are concluded. However, the Court declines to defer its <i>in camera</i> review or disclosure ordered after the review on that basis. Furthermore, as to Defendant’s requested limitations to Requests Nos. 6 and 7. The Court declines to impose the proposed limitations before conducting its <i>in camera</i> review. The Court will determine, following that review, whether any responsive materials are relevant and subject to disclosure, including whether any information is too remote to provide practical benefit. Pursuant to the foregoing, Plaintiff’s Motion to Compel
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		Production is GRANTED. The Court orders that the custodian of records for the City of Seal Beach produce the records described above for an <i>in camera</i> review on October 9, 2026, at 9:00 a.m. in Department CM02. The Court will conduct an <i>in camera</i> review, subject to the foregoing, and will order disclosure after that review only of those documents it determines are relevant to the matter involved in the pending litigation. Cal. Evid. Code § 1045. Plaintiff shall give notice.
2.	30-2024-01378889-CU-BC-CJC National Funding, Inc. vs. RM Realty Associates, LLC	
3.	30-2024-01444459-CU-WT-NJC Park vs. Optimum Professional Property Management, Inc.	Before the Court is a Motion for Reconsideration brought by movants Optimum Property Management, Inc. ("Movant"). ROA 248. Movants seek reconsideration of the Court's May 21, 2026, Order (ROA 199), imposing monetary discovery sanctions upon Movant's counsel, Jackson Lewis, P.C., in the total collective amount of \$40,419.02, due and payable to plaintiff's counsel, Mozaffari Law, P.C. ROAs 199, 248. Motion for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a court's order "may, within 10 days after service upon the party of written notice of entry of the order," move the court to reconsider, modify, or revoke the court's prior order. Cal. Civ. Proc. Code § 1008(a). The moving party's application must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown." <i>Id.</i>

California Code of Civil Procedure § 1008(b) provides that a party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law. Cal. Civ. Proc. Code § 1008(b).

Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were not known or available at the time of the original application. *See Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 690 (1997). Courts will not consider new or different facts, circumstances, or law presented at application for reconsideration that courts find were available to the applicant at the time of the original application in controversy. *See Id.* (finding that the applicant failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier).

Here, on May 21, 2026, the Court imposed monetary discovery sanctions upon Movant's counsel in the amount of \$40,419.02 due and payable to Plaintiff's counsel. ROA 199.

On July 17, 2026, Movant filed this Motion for Reconsideration, pursuant to California Code of Civil Procedure Section 1008, arguing that new or different facts and circumstances warrant reconsideration of the order of sanctions.

The Court finds that Movant's Motion for Reconsideration is *untimely* under California Code of Civil Procedure Section 1008, subdivision (a), because it was filed more than ten (10) days after service of written notice of entry of the sanctions order. The Court's sanctions order was issued in May, yet Movants waited almost *two months* before filing this Motion for Reconsideration in July. Accordingly, the Court lacks authority to consider the motion as one for reconsideration under Cal. Civ. Proc. Code § 1008(a).

	Movants contend that their motion is timely under California Code of Civil Procedure Section 1008, subdivision (b), because Section 1008(b) does not impose the ten (10) day deadline applicable to a motion for reconsideration. ROA 274, p.2. The Court disagrees. A motion brought under California Code of Civil Procedure Section 1008, subdivision (b) is a <i>renewed</i> motion for the <i>same order</i> previously sought by the <i>original</i> moving party and refused in whole or in part, or granted conditionally or on terms. Only the party that <i>originally</i> made the application for that order may bring a renewed motion under Section 1008, subdivision (b). Cal. Civ. Proc. Code § 1008(b). Such is not the case here. Here, Movants opposed the original motion; they did not make the original application for the order at issue. <i>See</i> ROA 201. Accordingly, Movants may not invoke Section 1008(b) to seek relief from that order. Moreover, even if timely under Cal. Civ. Proc. Code § 1008, Movants identify no <i>new</i> or different facts, circumstances, or law warranting relief. The settlement agreement relied upon by Movant was executed before the original hearing on May 21, 2026, and was known to the parties at that time. ROA 248. The Court was aware at the hearing that the parties had signed a settlement agreement, yet no notice of settlement had been filed. ROA 270. Based on those circumstances, the Court determined that a final settlement had not yet been completed. <i>Id.</i> The settlement agreement therefore was not new matter that Movants could not, with reasonable diligence, have discovered or presented at the original hearing. Pursuant to the foregoing, Movant's Motion for Reconsideration is DENIED as untimely. Plaintiff shall give notice.
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4.	30-2025-01476022-CU-BC-CJC Jerisat vs. Young	Before the Court is a motion for a Protective Order (“Motion”) brought by defendant Steven Young (“Defendant”) against plaintiff Martin Jerisat (“Plaintiff”). ROA 139. The Court notes that the only remaining issue regarding the instant Motion is sanctions. ROA 282. Defendant seeks the imposition of monetary sanctions in the amount of \$4,850.00 on Plaintiff. ROA 139. Plaintiff requests that the Court impose monetary sanctions on Defendant in the amount of \$1,500.00. ROA 183. I. Sanctions re: Motions for Protective Order California Code of Civil Procedure sections 2017.020 and 2033.080, state that “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2017.020(b), 2033.080(d). “The term ‘substantial justification’ means a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions a party “may show ‘substantial justification’ for his or her position – i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified.” <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Prop. v. Lyon/Copley/Corona Assocs.</i>, 46 Cal. App. 4th 1542, 1577 (1996)). The Court “<i>must</i> make an explicit finding this [substantial justification] exception exists,” however, “the court need not make an explicit finding the [substantial justification] exception does not exist” <i>Parker v. Wolters Kluwer U.S.</i>,
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	<i>Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, the Court finds no substantial justification in fact or law for Defendant’s instant Motion. Accordingly, monetary sanctions are mandatory. II. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or an attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal Civ. Proc. Code § 2023.030(a). When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed
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	upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. The court found that counsel's mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client's refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, the Court finds that the filing of the instant Motion is not attributable to client misconduct. Indeed, the Court finds that the record shows the misconduct is attributable to Defendant's counsel of record. However, because Plaintiff's opposition to Defendant's instant Motion does not place Defendant's counsel of record on notice, the Court finds that the imposition of warranted sanctions at this juncture would violate due process. Accordingly, Defendant's Motion is DENIED and Plaintiff's request for the imposition of sanctions upon Defendant is also DENIED.
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5.	30-2025-01525674-CU-NP-WJC Lister vs. Valley Post-Acute And Rehab LLC	Before the Court are eight (8) motions for sanctions (“Motions”) brought by plaintiff Kathleen Rose Lister, by and through her successor in interest, Hattie Davis (“Plaintiff”) against defendant Valley Post-Acute and Rehab, LLC (“Defendant”). ROAs 129, 136, 137, 138, 139, 140, 141, 150. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(5), 2023.010, 2023.030, 2025.450(h), 2030.290(c), 2031.300(c), and 2033.280, imposing monetary, issue, and evidentiary sanctions upon Defendant and Defendant’s counsel for Defendant’s failure to comply with the Court’s April 21, 2026, order to serve responses to Plaintiff’s discovery demands. ROAs 129, 136, 137, 138, 139, 140, 141, 150, 106. Additionally, Plaintiff seeks an order: (i) admitting the genuineness of any documents and the truth of any matters specified in Plaintiff’s request for admissions, set one (“RFA”); and (ii) imposing additional monetary discovery sanctions upon Defendant and Defendant’s counsel of record, jointly and severally, in the amount of \$3,000.00. ROA 129 p. 7. In total, Plaintiff seeks \$27,500.00 in sanctions for Defendant’s alleged discovery abuses and failure to obey the Court’s orders. Relevant Timeline of Events On January 13, 2026, Plaintiff served a motion to compel the deposition of Defendant’s person most qualified upon Defendant by email. ROA 24, p.76. On January 26, 2026, Plaintiff served the following motions upon Defendant by email: (i) a motion to deem facts admitted as to Plaintiff’s RFA; (ii) a motion to compel responses to request for production, set one; (iii) a motion to compel responses to special interrogatories, set one; and (iv) a motion to compel responses to form interrogatories, set one. ROA 37, p.28; ROA 34, p.29; ROA 35, p.29; ROA 36, p.29. On January 27, 2026, the Court ordered the parties to attend
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		an informal discovery conference (“IDC”) facilitated by the Court, scheduled for February 18, 2026. ROAs 40, 43, 47, 48. On February 9, 2026, the Court continued the IDC to March 17, 2026. ROA 61. On March 13, 2026, Plaintiff served the following additional motions upon Defendant by email: (i) a motion to compel responses to requests for production, set two; (ii) a motion to compel responses to requests for production, set three; and (iii) a motion to compel responses to special interrogatories, set two. ROA 84, p.28; ROA 83, p.19; ROA 85, p.19. The Court immediately set these disputes for a separate IDC scheduled for April 21, 2026. ROAs 81, 87, 89. On March 13, 2026, the Court continued the IDC scheduled for March 17, 2026, to coincide with the IDC scheduled for April 21, 2026, to consolidate the resolution of all the parties’ discovery disputes. ROA 99. On April 21, 2026, the parties attended the IDC as ordered. ROA 106. In the Court’s ensuing order, it noted that the following were undisputed: (i) no discovery responses have been provided; (ii) objections have been waived; and (iii) there is no substantial justification for prior non-compliance. ROA 106. Additionally, the parties submitted to the following Order of the Court: that Defendants are ordered to serve “verified, objection-free responses . . . by no later than May 21, 2026, to all outstanding discovery[,]” and that “sanctions are imposed in the amount of \$2,500 on Defendants” and Defendants’ counsel, “jointly and severally, due and payable to Garcia and Coman no later than 30 days from today [i.e. May 21, 2026].” <i>Id.</i> Despite Plaintiff’s repeated efforts to facilitate Defendant’s compliance with the Court’s Order, Defendant has failed to comply. ROA 150, p. 12; ROA 141, p. 15; ROA 140, p. 12; ROA 139, p. 13; ROA 138, p. 15; ROA 137, p. 12; ROA 136, p. 12; ROA 129, p. 9. Discretionary Sanctions California Code of Civil Procedure Section 128 endows the Court with the power to “compel obedience to its
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		judgments, orders, and process” Cal. Civ. Proc. Code § 128(a)(4). California Code of Civil Procedure Section 177.5 provides that “[a] judicial officer shall have the power to impose reasonable monetary sanctions, not to exceed fifteen hundred dollars (\$1,500) . . . payable to the court, for <i>any</i> violation of a lawful court order . . . done without good cause or substantial justification.” Cal. Civ. Proc. Code § 177.5 (emphasis added); <i>see also People v. Aguirre</i>, 64 Cal. App. 5th 652, 668 (2021) (stating Section 177.5 “does not require a ‘willful violation, but merely one committed . . . without a valid excuse.’” (citations omitted)). A court imposing sanctions pursuant to Section 177.5 must “recite in detail the conduct or circumstances justifying the order.” Cal. Civ. Proc. Code § 177.5; <i>see also People v. Edwards</i>, 88 Cal. App. 5th 1259, 1273 (2023) (finding a court’s mere recitation of the words of the statute insufficient to support the imposition of sanctions). Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s willful and ongoing noncompliance of this Court’s order to serve responses to Plaintiff’s discovery requests. Thus, Defendant is liable for up to \$1,500 in monetary sanctions pursuant to California Code of Civil Procedure Section 177.5. Discretionary Sanctions for Misuse of the Discovery Process “California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to ‘misuse of the discovery process.’” <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); <i>see also</i> Cal. Civ. Proc. Code § 2023.030(a)-(d) (granting the court authority to impose monetary, issue, evidentiary, and terminating sanctions). “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, “[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery.” <i>Id.</i>
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		To ensure proportionality, trial courts should generally take an “incremental” approach—that is, they should “attempt[] less severe alternative[] [sanctions]” <i>unless</i> the “record clearly shows lesser sanctions would be ineffective.” <i>Lopez v. Watchtower Bible and Tract Soc’y of New York</i>, 246 Cal. App. 4th 566, 604 (2016) (emphasis added). “Only two facts are absolutely prerequisite to the imposition of a [nonmonetary] sanction. There must be a failure to comply, and the failure must be willful.” <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983). Willfulness in the context of nonmonetary sanctions means a “conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance” <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). “Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Id</i> at 787; <i>see Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so). Here, as outlined above, the Court issued a clear order for Defendant to serve responses to Plaintiff’s discovery demands and the parties submitted to said order. ROA 106. It is unequivocal that Defendant failed to comply. Despite Plaintiff’s continuing efforts to ensure Defendant’s compliance, Defendant <i>still</i> has refused to comply. The Court is convinced that Defendant has no intention of responding to Plaintiff’s discovery demands or obeying this Court’s order to do so. Accordingly, the Court finds that Defendant’s discovery misuse is willful and that monetary and evidentiary sanctions are appropriate to prevent future abuse. Assigning Liability for Sanctions California Code of Civil Procedure Section 2023.030 permits
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		a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney’s declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for example, by instructing a client not to answer without substantial justification, failing
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	to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. (standards permitting monetary sanctions upon a party's attorney). "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see also Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding the fact that plaintiff's counsel opposed a motion to compel did not give rise to an inference counsel advised disobedience). The <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Here, the Court finds that Defendant's failure to obey the Court's order to provide responses to Plaintiff's discovery requests is not attributable to client misconduct. Indeed, the Court finds that the record shows unequivocally that the misconduct is attributable to Defendant's counsel's discovery abuse. Accordingly, monetary sanctions are appropriate upon Defendant's counsel only. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a
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	reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Having considered the foregoing principles in light of Plaintiff’s counsel’s calculation of the expenses incurred in bringing these motions, the Court finds that Defendant’s counsel is liable for the reasonable sanctions amount of \$27,500, owed to Plaintiff’s counsel, pursuant to California Code of Civil Procedure Section 2023.010. However, the Court finds that the imposition of additional sanctions of up to \$1,500, pursuant to California Code of Civil Procedure Section 177.5, would be duplicative and disproportionate. Consequently, the Court elects not to impose sanctions under this latter authority. Accordingly, Plaintiff’s Motion for sanctions is GRANTED and evidentiary sanctions are IMPOSED as follows: (i) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as to the following issues: that Defendant had sufficient staff to meet the needs of its residents during the residency of Kathleen Rose Lister on an ongoing basis in compliance with 22 Code of Regulations § 72329.1; that Defendant did not know that their staff who provided “nursing services”, as the term is defined in 22 California Code of Regulations § 72311, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and Rehab LLC and employed them nonetheless; that Defendant’s managing agents did not know of the unfitness of their staff who provided “Nursing Services” to the Plaintiff to perform their job duties at Valley Post-Acute and Rehab LLC; that such actions by Valley Post-Acute and Rehab LLC were not the proximate cause of Kathleen Rose Lister suffering from avoidable, dehydration, hypernatremia, and ultimately sepsis, while
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	she was a resident of the facility; and (ii) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as Defendant's Separate and Additional Defense Nos. 1, 6-7, 12-13, 21-23, 27-29, and 33-36. Additionally, the Court IMPOSES additional monetary sanctions upon Defendant's counsel of record, Buchholz, Harris, Levine & Brennan, P.C., in the total collective amount of \$27,500, pursuant to California Code of Civil Procedure Section 2023.010, due and payable to Plaintiff's counsel, Garcia & Coman, no later than ninety (90) days after receiving notice of this Order. The Court orders Clerk to give notice to the parties.
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